

25SMCV03455 25SMCV03455

County: los-angeles

Division: Civil Law and Motion

Department: N

Hearing date: 2026-08-13

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TENTATIVE RULING

Jeff A. Mann of Law Offices of Jeff A. Mann's Motion to Be Relieved as Counsel for Defendant Yousef Maghen, M.D. is CONTINUED to TBD for counsel to provide sufficient proof of service of all documents associated with this motion as previously ordered.

Counsel has asserted a valid reason for withdrawal, i.e., the clients has breached material obligations under the parties' retention agreement, and the attorney-client relationship has broken down. (Rules Prof. Conduct, rule 1.16(b)(4), (b)(5).) Counsel has provided the required forms under rule 3.1362 of the California Rules of Court, but he failed to provide proof of service of the proposed order as required by rule 3.1362, subdivisions (d) and (e), of the California Rules of Court. While the proof of service filed on July 16, 2026, shows service of an unidentified order, the Court lacks a basis to conclude that the order served was the one related to the present motion. Moreover, the Court previously stated concerns about service of the motion, and the Court ordered counsel to re-serve the motion, but counsel has provided proof of service only as to notices of continued hearing on the motion. Thus, Jeff A. Mann of Law Offices of Jeff A. Mann's Motion to Be Relieved as Counsel for Defendant Yousef Maghen, M.D. is CONTINUED to TBD for counsel to provide sufficient proof of service of all documents associated with this motion as previously ordered.